Besides, it expunged the remarks the NCLT had made against Mistry. The two-bench tribunal also termed ‘illegal’ the permission accorded for the conversion of ‘Tata Sons Limited’ from a ‘public company’ to a ‘Private company’ by the Registrar of Companies. It ordered compliance of all its directions ‘forthwith’. However, upon the intervention of Abhishek Manu Singhvi, ‘after the judgment was pronounced’, the bench gave the group four weeks to implement this part of the order.

To the group, the decision came as a ‘shock’ and a ‘disappointing judgment’, says Chandrasekaran. But it was a legal issue and it had to be handled legally. ‘Your own emotions do not matter,’ he adds. Both Tata Trusts and Tata Sons had been blamed and so was Ratan. It was crucial to get their names cleared. Tata Trusts, Tata Sons and ‘all of us’ worked together, Chandrasekaran says. ‘It would be important a hundred years from now also. This is not about today or tomorrow … Institutions cannot have a blot because they mean so much to millions of people. They have blind faith in the institution,’ he feels.

As was clear from my conversation with Ratan, he was determined to challenge the order before the Supreme Court. On 2 January 2020, Tata Sons filed an appeal challenging the NCLAT’s decision in entirety. The appeal underscored that the NCLAT’s order to reinstate Mistry, a prayer that had not even been made, ‘undermines corporate democracy’. The conclusions of the appellate tribunal were based on the premise that Tata Sons is a public company, and that it had mandated an ‘unwarranted and unsolicited consultative process’. The next day, TCS field an appeal against the order of the appellate tribunal as well.

On the same day, Ratan also filed another appeal on similar lines. He said that the lower court’s judgment was ‘specious, wholly erroneous and unsustainable’. In his appeal, Ratan highlighted that Mistry’s petition was all about his ‘commercial ambition’. Mistry had breached company board protocols and exaggerated the financial ill-health of various Tata companies to sow panic among shareholders. He had also caused the initiation of tax-related proceedings on the group. Ratan also expressed his consternation and frustration over Mistry’s stubborn reluctance to disassociate himself from his family business—a condition that had been precedent to his appointment as chairman, Tata Sons.

He also contested Mistry’s contention that there was a quasi-partnership between the Shapoorji Pallonji Group and the Tatas. He argued that the